

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                     |                                     |                                                       |                                               |                                 |
|---------------------------------------------------|-------------------------------------|-------------------------------------|-------------------------------------------------------|-----------------------------------------------|---------------------------------|
| Investigator:<br>Greg Finch                       | Team:<br>Squad #14                  | CCRB Case #:<br>201709546           | <input type="checkbox"/> Force                        | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                   |                                     |                                     | <input type="checkbox"/> Abuse                        | <input checked="" type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Wednesday, 11/15/2017 9:05 AM | Location of Incident:<br>§ 87(2)(b) | 18 Mo. SOL<br>5/15/2019             | Precinct:<br>107                                      |                                               |                                 |
| Date/Time CV Reported<br>Wed, 11/15/2017 9:41 AM  | CV Reported At:<br>CCRB             | How CV Reported:<br>On-line website | Date/Time Received at CCRB<br>Wed, 11/15/2017 9:41 AM |                                               |                                 |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Witness(es) | Home Address |
|-------------|--------------|
| § 87(2)(b)  | § 87(2)(b)   |
| § 87(2)(b)  | § 87(2)(b)   |

| Subject Officer(s)         | Shield | TaxID  | Command |
|----------------------------|--------|--------|---------|
| 1. POF Catherine Hernandez | 09597  | 933846 | 107 PCT |
| 2. POM Brian Dietzel       | 11091  | 934770 | 107 PCT |

| Officer(s)                  | Allegation                                                                                                                            | Investigator Recommendation |
|-----------------------------|---------------------------------------------------------------------------------------------------------------------------------------|-----------------------------|
| A . POM Brian Dietzel       | Discourtesy: Police Officer Brian Dietzel spoke discourteously to § 87(2)(b)                                                          | A . Unsubstantiated         |
| B . POF Catherine Hernandez | Off. Language: Police Officer Catherine Hernandez made remarks to § 87(2)(b) based upon the perceived mental disability of § 87(2)(b) | B . Unsubstantiated         |
| C . POF Catherine Hernandez | Off. Language: Police Officer Catherine Hernandez made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)                      | C . Unsubstantiated         |

## Case Summary

On November 15, 2017, § 87(2)(b) filed this complaint via the CCRB's on-line website.

On November 15, 2017, at approximately 9:05 a.m., § 87(2)(b) called 911 in regards to an ongoing dispute with her neighbor, § 87(2)(b) at § 87(2)(b) in Queens. Police Officer Brian Dietzel and Police Officer Catherine Hernandez of the 102<sup>nd</sup> Precinct arrived on scene and spoke at the building front door with § 87(2)(b). PO Dietzel allegedly told § 87(2)(b) "You need to stop putting shit on your own door, lady" (**Allegation A: Discourtesy, unsubstantiated**). PO Catherine allegedly told § 87(2)(b) "You need to commit yourself to a mental hospital, you crazy bitch" (**Allegations B and C: Offensive Language, unsubstantiated**). No arrests or summonses were issued.

There is no video evidence in this case.

## Findings and Recommendations

**Allegation A – Discourtesy: Police Officer Brian Dietzel spoke discourteously to § 87(2)(b)**

**Allegation B – Offensive Language: Police Officer Catherine Hernandez made remarks to § 87(2)(b) based upon the perceived mental disability of § 87(2)(b)**

**Allegation C – Offensive Language: Police Officer Catherine Hernandez made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)**

According to § 87(2)(b) she called 911 for police to arrest her neighbor, § 87(2)(b) who § 87(2)(b) had an open complaint against for assault and who she alleged smeared feces across her apartment front door (Board Review 01). When § 87(2)(b) spoke with PO Dietzel and PO Hernandez at her building front door, PO Dietzel allegedly told her, "You need to stop putting shit on your own door, lady. We're not arresting him." PO Hernandez allegedly told § 87(2)(b) "You need to commit yourself to a mental hospital, you crazy bitch." § 87(2)(b) walked back to her second floor apartment.

On January 10, 2018, the CCRB Field Team canvassed for witnesses at § 87(2)(b) in Queens with negative results (Board Review 07).

PO Dietzel and PO Hernandez both denied making the alleged statements to § 87(2)(b) during this incident and denied hearing each other do so (Board Review 02; Board Review 03).

§ 87(2)(g)

It is therefore recommended that **Allegations A, B and C** be closed as **unsubstantiated**.

## Civilian and Officer CCRB Histories

- This is the first complaint filed by § 87(2)(b) with the CCRB (Board Review 04).
- PO Dietzel has been a member of the NYPD for 13 years and has four prior CCRB complaints with 11 total allegations, none of which were substantiated. There are three previous discourtesy allegations, two of these allegations were unsubstantiated by the Board, and one was closed as complainant uncooperative.

- PO Hernandez has been a member of the NYPD for 13 years and has one prior CCRB complaint with one total allegation, which was not substantiated § 87(2)(g)

### **Mediation, Civil and Criminal Histories**

- § 87(2)(b) declined mediation.
- A Notice of Claim query was submitted to the NYC Comptroller's Office on January 5, 2018 (Board Review 05). The response will be added to the casefile upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

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Squad No.: 14

Investigator: \_\_\_\_\_

|           |                    |      |
|-----------|--------------------|------|
| Signature | Print Title & Name | Date |
|-----------|--------------------|------|

Squad Leader: \_\_\_\_\_

|           |                    |      |
|-----------|--------------------|------|
| Signature | Print Title & Name | Date |
|-----------|--------------------|------|

Reviewer: \_\_\_\_\_

|           |                    |      |
|-----------|--------------------|------|
| Signature | Print Title & Name | Date |
|-----------|--------------------|------|